

Satyapal Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 July 2022 · Writ - C No. 19088 of 2022 · Writ - C No. 19088 of 2022 · **Writ disposed; liberty to file Para 6.8 objection; coercive recovery stayed eight weeks.**

HEADNOTE

Without opinion on merits, a writ seeking to quash demand notices dated 20.05.2021 and 22.06.2021 and to restrain recovery of Rs. 74,498 was disposed of with liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided within the next four weeks after hearing, with no coercive action for eight weeks or till disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Satyapal Singh filed a writ petition in the Allahabad High Court seeking to quash notices dated 20 May 2021 and 22 June 2021 and to restrain recovery of Rs. 74,498 by the power distribution corporation, also praying for a hearing at the time of assessment. Counsel for the corporation stated on instructions that the petitioner could file an objection against the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

statutory objection to demand

HOLDING

Without expressing any opinion on merits, the writ challenging notices dated 20.05.2021 and 22.06.2021 and recovery of Rs. 74,498 was disposed of with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent No. 2 within four weeks; a timely objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing; no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier.

¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against demand notices and recovery was disposed of by relegating the consumer to a Para 6.8 Supply Code objection, without any merits determination. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay A timely Para 6.8 objection is to be decided after hearing within four weeks, with coercive recovery stayed for eight weeks or until the objection is decided, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE NOTICES DATED 20.05.2021 AND 22.06.2021 AND THE DEMAND OF RS. 74,498

The Court expressly declined to express any opinion on the merits. ¶ 1